

**Request for Temporary Moratorium on High-Volume Conditional Uses
and Sponsorship by Commissioner Walt Benson, District 4, Along the
Alameda / 2nd Street NW Corridor and the Far North Valley Regional Area**
Date:

To: Honorable Members of the Board of County Commissioners
Bernalillo County Planning & Development Services
415 Silver Ave. SW, 2nd Floor
Albuquerque, NM 87102

Re: Request for Temporary Moratorium on High-Volume Conditional Uses and Sponsorship by
Commissioner Walt Benson, District 4, Along the Alameda / 2nd Street NW Corridor and Far
North Valley Regional Area – Paseo Del Norte Pass Bridge to Roy Ave (Sandia Pueblo) and I-25
to the Alameda Bridge

Dear Commissioners,

The Maria-Diers Neighborhood Association, by its President and Appellant representative Pat Hauser, on behalf of the residents and neighborhood groups who joined in the BA2026-0001 appeal and petition, writes in support of its appeal in BA2026-0001 / ZA2026-0024 and to ask the Board to address the broader regional infrastructure issue that underlies this and similar cases in the North Valley.

The Alameda / 2nd Street NW corridor is already documented as one of the most congested and constrained segments in the region: Congestion Management Process corridor rankings identify Alameda as a high-stress corridor, the 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426) in the BOA agenda packet documents critical operational limits — Level of Service F and right-in/right-out access restrictions — along the Alameda / 2nd Street corridor, and Public Works staff have acknowledged in hearings that Alameda river crossings are operating at or near over-capacity.

In recent hearings, County traffic staff have also stated that they cannot rely on Traffic Impact Analyses that are more than three years old, which is consistent with best practices in traffic engineering that require current counts and analyses for major decisions. This means that, as of today, the County recognizes that older studies cannot serve as the primary basis for approving new high-volume conditional uses on the Alameda / 2nd Street corridor, yet has not commissioned updated corridor-level traffic studies or required project-specific TIAs at the conditional-use stage, leaving decision-makers and the public to rely on outdated information and speculative assurances instead of current engineering data.

The recent conditional use approval in BA2026-0001 / ZA2026-0024 illustrates this gap starkly. The applicant sought approval for a 50,000 square foot mosque with integrated licensed daycare and a full K-12 school located entirely within the main building, accommodating approximately

350 students and 50 daycare attendees, in addition to around 100 daily visitors for worship and community activities as described in the written statement and appellee materials in the BOA agenda packet. The same materials describe approximately 250 Friday worshippers for the weekly Jum'ah prayer, while the appeal record quotes the applicant's own representation of 350–400 Friday attendees and 150–200 vehicles at peak, demonstrating that this facility operates as a high-volume institutional assembly with substantial peak-hour and weekly trip generation.

Despite these high volumes and the well-documented constraints of the Alameda / 2nd Street NW corridor, the County's current practice has been to approve high-volume conditional uses along this corridor while deferring project-specific Traffic Impact Analyses and mitigation decisions to the building-permit phase, effectively leaving the quasi-judicial land-use record devoid of the very engineering data needed to evaluate whether additional large-scale assemblies can be safely accommodated. In our appeal brief and supporting trip-generation analysis, we have documented how this practice resulted in an "empty file" for BA2026-0001 / ZA2026-0024—no project-specific TIA, no integrated trip-generation analysis for the high-volume mosque, school, and daycare facility at the conditional-use stage, and no coordinated use of existing corridor studies—even as the conditional use was approved.

We respectfully request that the Board direct staff to prepare a focused regional infrastructure report on the Alameda / 2nd Street NW corridor, including updated traffic counts, level-of-service analyses, right-of-way and river-crossing constraints, and the cumulative impact of existing and approved Special Use and conditional use permits. Based on that report, we further ask the Board to consider adopting a temporary moratorium on new high-volume conditional uses along this corridor—and in similarly constrained Rural North Valley segments—until updated regional traffic studies and coordinated infrastructure plans demonstrate that additional large-scale assemblies can be safely supported without undue congestion, hazards, or degradation of Rural character.

Any such moratorium should be neutral and apply equally to all high-volume institutional and commercial conditional uses, religious and secular alike. The Religious Land Use and Institutionalized Persons Act (RLUIPA) does not require Bernalillo County to lower or defer neutral public-safety standards; it requires that those standards be applied even-handedly to religious assemblies and comparable secular uses. A corridor-focused moratorium that is grounded in objective infrastructure limits and Comprehensive Plan policies, and that treats all high-volume assemblies the same, would honor that federal requirement while upholding the County's duty to protect public safety and preserve the Rural North Valley's intended character.

For these reasons, we respectfully ask Commissioner Walt Benson, District 4, to sponsor and introduce a temporary moratorium and corridor-level infrastructure study for the Alameda / 2nd Street NW corridor and similarly constrained Rural North Valley segments, and we ask the Board as a whole to support this neutral, data-driven safeguard on behalf of residents county-wide.

Thank you for your consideration and for your continued service to the residents of Bernalillo County.

Respectfully submitted,

Maria-Diers Neighborhood Association, on behalf of the residents and neighborhood groups who joined the BA2026-0001 appeal and petition. [file:1975]

By: _____

Pat Hauser, President and Appellant Representative

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Trip Generation Analysis

ZBA2026-0001 / ZA2026-0024 — 9600 2nd Street NW, Bernalillo County, NM

Prepared by Appellant Support Team — Derived from data on record and testimony at the July 1, 2026 CPC hearing.

AIC = Albuquerque Islamic Center (the applicant/property owner at 9600 2nd Street NW).

Citations in this analysis use Bernalillo County BOA agenda packet page numbers (“Packet Pg. NNN”) based on the 1,951-page unified agenda packet (Exhibits on Public Portal). All referenced documents are publicly accessible at:

<https://bernalillocountynm.iqm2.com/Citizens/Search.aspx> — search by case number ZA2026-0024 or ZBA2026-0001.

This exhibit presents estimated daily vehicle trip generation for the proposed Albuquerque Islamic Center conditional use at 9600 2nd Street NW under the Revised Site Plan — with school and daycare verbally removed at the July 1, 2026 CPC hearing. All figures are derived from the applicant's own submissions, the AIC letter to residents, and the AIC weekly schedule exhibit — all documents in the case record. Recreational use and special gathering figures are conservative estimates; no attendance data for those uses was submitted by the applicant. A full Traffic Impact Analysis has not been provided.

These estimates are the minimum supportable from the record. The weekly schedule (AIC Prayer Schedule Exhibit, Packet Pg. 1360-1362) reflects the AIC's current operating schedule at their existing Menaul Street facility, submitted into the record by the Appellant. The AIC did not file a separate operational schedule for the proposed site and did not dispute this schedule at the July 1, 2026 hearing.

Estimated Weekly Vehicle Trips — Revised Site Plan, All Use Categories

School and daycare verbally removed at the July 1, 2026 hearing (ZA Gould). No amended stamped drawings have been submitted. Chart shows all remaining use categories: daily prayers, scheduled evening programs and Quran Evening Program, estimated daily recreational use (gym/basketball/pool), estimated unscheduled special gatherings (weddings, funeral prayers, Ramadan events, community banquets), and staff. Recreational and special gathering figures are conservative estimates — the record contains zero attendance data for those uses.

Sources: Applicant Written Statement (Packet Pg. 1797-1807); AIC Letter to Residents (referenced in the record and in BA 2026-001 hearing testimony) — cited for Friday attendance figures; AIC Prayer Schedule Exhibit (Packet Pg. 1360-1362); Sheet A-200 First Floor plan (Packet Pg. 1112-1125 range); 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426).

Weekly Trip Summary — Revised Plan by Use Category

Even using the Applicant's own lowest-stated attendance figures, published ITE occupancy rates applied by activity type, and excluding recreational use, special gatherings, and population

transfer entirely from any upward adjustment, the revised plan generates an estimated 2,164 vehicle trips per week and 560 vehicle trips on a single Friday — on a corridor where the only available traffic study in the record, the 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426; trip generation table at Packet Pg. 1416), projected 168 PM peak-hour trips (86 entering + 82 exiting) from a single 12-pump gas station and documented Level of Service F on the westbound Alameda through-movement at the Alameda / 4th Street signalized intersection (Packet Pg. 1417), at the Murphy Express Driveway “A” left-turn movement (Packet Pg. 1409), and required both site driveways to be restricted to right-in/right-out-only access (Packet Pg. 1410). Every figure in this analysis is a floor, not a ceiling. The analysis understates demand.

Day	Prayers/ Worship	Programs/ Quran	Recreation (est.)	Special Gatherings (est.)	Staff	Daily Total
Monday	96	24	53	24	20	217
Tuesday	96	20	53	24	20	213
Wednesday	96	0	53	24	20	193
Thursday	96	24	53	24	20	217
Friday	360	87	53	40	20	560
Saturday	96	103	107	60	8	374
Sunday	96	119	107	60	8	390
Weekly Total	936	377	479 (est.)	256 (est.)	116	2,164

Note: Recreation and special gathering columns are conservative estimates — no attendance data for those uses exists anywhere in the case record. Actual totals are higher. The following are NOT included in any column: population transfer from closing mosques; regional westside draw (Rio Rancho, Corrales, Taylor Ranch, Paradise Hills, Sandoval County); Eid events (615 worshippers, 2×/year); or ITE SF-based trip generation for a 60,000 SF facility. All figures use the applicant's own lower-bound numbers.

Appendix A — Why the Revised Plan Still Exceeds This Corridor's Capacity

The revised plan (school and daycare verbally removed at the July 1, 2026 hearing — no amended stamped architectural drawings were ever filed) still places a load this corridor cannot handle for five independent reasons.

1. The reduction falls entirely on the wrong days

The Friday peak — 560 vehicle trips — is entirely unaffected by the verbal school removal. Friday remains the single highest-volume day under both plans and the day that generated every traffic concern at the April 8 and July 1 hearings. The verbal school removal did not reduce Friday peak by a single vehicle trip.

2. 560 Friday trips on a corridor that failed at 168 PM peak-hour trips

The 2020 Murphy Express traffic study (Packet Pg. 1407-1426; trip table at Packet Pg. 1416) — the only corridor data in the record — found that a 12-pump gas station generating 168 PM peak-hour trips (86 entering + 82 exiting) projected Level of Service F on the westbound Alameda through-movement at the Alameda / 4th Street signalized intersection (Packet Pg. 1417) and at the Murphy Express Driveway “A” left-turn movement on Alameda Blvd. (64.1 seconds control delay, Packet Pg. 1409), and required both site driveways to be restricted to right-in/right-out-only access (Driveway A on Alameda Blvd. per NMDOT; Driveway B on 2nd Street per Bernalillo County Public Works — Packet Pg. 1410). The revised AIC plan generates an estimated 560 trips on Friday alone — more than 3 times the PM peak-hour volume that produced Level of Service F on this same corridor six years ago. The Mechenbier warehouse at 9700 2nd Street NW is now under development, adding semi-truck traffic. A use generating more than 3× the Murphy Express PM peak-hour volume is not a smaller problem because the school was verbally removed without filing amended stamped drawings.

3. The regional problem is permanent regardless of site-level mitigation

County traffic engineer Luna testified: “That is not mitigating the regional issue, but it is mitigating the additional traffic that will be generated by their site.” A building-permit TIA can require driveway widening. It cannot widen Alameda Boulevard, extend the 16-second southbound signal on 2nd Street (3–4 vehicles per cycle), remove the at-grade railroad crossing 600 feet north, or acquire right-of-way from NMDOT or MRGCD. Those regional constraints exist regardless of the verbal school removal. A corridor already at capacity cannot absorb 560 Friday trips from any single new facility.

4. The Board voted on worship trips only — not the full revised plan

Commissioner Withers confirmed with the Applicant: “starting off with 60 cars moving up to 300 cars. But likely is going to be under the 200 car ratio. Is that pretty correct?” Applicant: “Correct.” That figure was worship attendance only — it excluded evening programs (6 days/week, AIC Prayer Schedule, Packet Pg. 1360-1362), Quran Evening Program (Fri/Sat/Sun), the gym, basketball court, pool room, coffee shop, cafeteria, and population transfer from closing mosques. The revised plan generates 560 Friday trips and 2,164 weekly trips — more than double the only vehicle count any Commissioner elicited from the Applicant on the record.

5. The revised plan still has no traffic analysis on the record

The Section 24 burden requires the Applicant to demonstrate the use will not create undue traffic hazards. That burden was never met for the original application. It was never re-evaluated for the revised plan. No traffic engineer testified that 560 Friday trips on 2nd Street NW is within this corridor’s remaining capacity. Luna stated on the record: “No. You have nothing on record.” “Smaller than the original” is not the legal standard. “No undue traffic hazards” is. That finding cannot be made on no evidence, regardless of the verbal school and daycare removal.

Corridor Capacity Context

Reference Point	PM Peak Trips	Corridor Result	Source
Murphy Express gas station (2020)	168 PM peak trips (86 enter + 82 exit)	LOS F at Alameda/4th WB thru (Packet Pg. 1417) and at Murphy Driveway A (Packet Pg. 1409); both driveways restricted to right-in/right-out-only (Packet Pg. 1410)	2020 Murphy Express Traffic Study, Packet Pg. 1407-1426 (trip table Packet Pg. 1416); NMDOT scoping determination Packet Pg. 1414
AIC — Revised Plan (verbal school removal; no amended drawings filed)	560 Friday trips	No analysis performed — nothing on record	Trip Generation Analysis, this exhibit
AIC revised vs. Murphy Express	560 Friday vs. 168 PM peak-hour trips	AIC Friday trips $\approx 3.3\times$ the Murphy Express PM peak-hour subtotal of 168 trips (2020), on the same corridor where even that gas-station load produced Level of Service F and required right-in/right-out-only access at both driveways	Calculated from record data
Applicant's on-record estimate (Withers exchange)	"under 200 cars"	Worship trips only — excludes programs, recreation, staff, population transfer	July 1, 2026 hearing testimony

The shaded rows show the direct comparison between the only corridor study in the record (Murphy Express 2020) and the revised plan the Board approved. The revised plan generates more than $3\times$ the PM peak-hour volume that produced Level of Service F on this same corridor six years ago (560 Friday trips vs. 168 PM peak-hour trips), on a corridor that has not been improved and has only grown more congested since.

Appendix D — Why Deferring Traffic Mitigation to the Building Phase Is Not a Cure

This section addresses the argument — implicit in the Board's approval — that any traffic problems with the proposed facility can be resolved at the building permit phase through a Traffic Impact Analysis and site-level mitigation conditions.

1. The CUP Is the Last Public Checkpoint

A conditional use permit is the last meaningful public checkpoint before construction begins. Once issued and recorded, the County's legal authority to condition, restrict, or deny the use based on traffic impact is exhausted. Any mitigation proposed at the building permit phase is evaluated by staff in a non-public administrative process, with no opportunity for neighboring property owners or the traveling public to present evidence, challenge findings, or appeal conditions. The Section 24 standard requires a finding that the proposed use “will not be detrimental to the public health, safety, and welfare” before approval. That finding cannot be made on a record that contains no traffic data, and it cannot be outsourced to a future administrative process the public cannot access.

2. The Mitigation May Not Be Physically Possible

2nd Street NW at this location is a two-lane rural road with no median, no turn lanes, no signalized intersection at the driveway, and no parallel arterial alternative for Westside communities (Corrales, Rio Rancho, City of ABQ Westside, Taylor Ranch, Paradise Hills) crossing into the Town of Alameda. If a post-approval traffic study finds Level of Service F — as the only study in the record already projects for this corridor at 168 PM peak-hour trips (86 entering + 82 exiting) from a single 12-pump gas station (2020 Murphy Express Traffic Study, Packet Pg. 1407-1426; trip table Packet Pg. 1416; LOS F at Alameda/4th and at Murphy Driveway “A”, Packet Pg. 1417 and 1409; NMDOT scoping determination Packet Pg. 1414) — there may be no available engineering fix. There is no room to widen. No signal warrant will be met for a private driveway. No secondary access exists to the north, east, or west. At that point, the County will have issued a permit for a facility that the road network physically cannot serve, and the neighborhood will bear the permanent consequence.

3. Post-Approval Studies Are Structurally Biased Toward Approval

Once the permit is secured, the economic pressure runs entirely in favor of maximizing the approved square footage and attendance. A traffic study commissioned after approval — paid for by the applicant — will be optimized to justify what has already been permitted, not to surface constraints that would require redesign. This is the inverse of the legally required sequence: the applicant bears the burden of demonstrating safety before approval, not after. Deferring that burden eliminates the applicant's incentive to reduce the project's traffic footprint at the only stage — pre-permit — when design changes are still feasible and costless.

4. The Corridor Capacity Ceiling Is Already in the Record

The 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426) found that 168 PM peak-hour trips (86 entering + 82 exiting per the trip table at Packet Pg. 1416, reduced to 117 primary trips after a 30% pass-by adjustment) from a single 12-pump gas station on this corridor segment, and the study's capacity analysis documented Level of Service F on the westbound Alameda through-movement at the Alameda / 4th Street signalized intersection (Packet Pg. 1417). Applying the same ITE-style attendance-to-trip conversion used throughout this exhibit (persons ÷ 2.5 occ × 2), the 117 primary-trip figure corresponds to a maximum comparable

worship attendance of approximately 146 persons during a peak event. The Applicant's own submissions describe 350–400 Friday worshippers — more than twice that comparable figure, before accounting for staff, evening programs, recreational use, or special gatherings.

The revised plan generates an estimated 560 vehicle trips on a single Friday and 2,164 vehicle trips per week. Every one of those figures exceeds the corridor's demonstrated capacity by a multiple, not a margin. This is not a case where mitigation might close the gap. The gap is so large that no plausible mitigation on a two-lane rural road can close it. The Board was required to make that finding before approval. It did not.

The Section 24 standard requires a pre-approval finding that the proposed use will not be detrimental to public health, safety, and welfare. That standard cannot be satisfied by promising to study the question later. The only corridor data in this record — the 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426) — already shows Level of Service F at 168 PM peak-hour trips (86 entering + 82 exiting, Packet Pg. 1416) on the westbound Alameda through-movement at the Alameda / 4th Street signalized intersection (Packet Pg. 1417). The proposed facility will generate that volume before the first Friday prayer is over.

Appendix C — ITE Trip Generation Math — Day-by-Day

This appendix shows the step-by-step ITE arithmetic for each day of the week under the revised plan (school and daycare verbally removed at the July 1, 2026 hearing; no amended stamped architectural drawings were filed). All inputs are drawn from the Applicant's own filed documents. ITE formulas: Worship (LUC 560) = persons ÷ 2.5 occ × 2; Quran/School drop-off (LUC 520) = persons ÷ 1.15 occ × 2; Staff = persons ÷ 1.0 × 2; Recreation (LUC 492) = persons ÷ 1.5 × 2. The ×2 factor counts both arrival and departure trip-ends (standard ITE convention). Evening program schedule source: AIC Prayer Schedule / Weekly Program Exhibit, Packet Pg. 1360-1362, submitted by the Appellant; undisputed by AIC at the July 1, 2026 hearing.

Day	Prayers (LUC 560)	Programs (LUC 520)	Rec. est. (LUC 492)	Special (est.)	Staff	Daily Total
Monday	96	24	53	24	20	217
Tuesday	96	20	53	24	20	213
Wednesday	96	0	53	24	20	193
Thursday	96	24	53	24	20	217
Friday	360	87	53	40	20	560
Saturday	96	103	107	60	8	374
Sunday	96	119	107	60	8	390
Weekly	936	377	479	256	116	2,164

Friday Peak — Full Breakdown

Component	Persons	LUC / Occ.	Formula	Trips
Jumu'ah worship (350 attendees, lower bound)	350	LUC 560 / 2.5	$350 \div 2.5 \times 2$	280
Non-Jumu'ah prayers (5 remaining × 20)	100	LUC 560 / 2.5	$100 \div 2.5 \times 2$	80
Quran Evening Program (50 youth, drop-off model, LUC 520)	50	LUC 520 / 1.15	$50 \div 1.15 \times 2$	≈87
Recreational use (est.)	~40	LUC 492 / 1.5	$40 \div 1.5 \times 2$	53
Special gathering (Friday premium est.)	~50	LUC 560 / 2.5	$50 \div 2.5 \times 2$	40
Staff (Friday)	10	Staff / 1.0	$10 \div 1.0 \times 2$	20
FRIDAY TOTAL (revised plan)	—	—	280+80+87+53+40+20	560

Friday source: AIC Letter to Residents (see hearing testimony record and applicant materials at Packet Pg. 1085-1111): "350 to 400 attendees, typically 150 to 200 vehicles" (lower bound 350 used). Quran Evening Program: AIC Prayer Schedule, Packet Pg. 1360-1362 (Appellant-submitted, undisputed). Friday is IDENTICAL under the initial and revised plans — school/daycare removal reduces zero Friday trips.

Appendix B — Trip Calculation Methodology

Trip figures in this exhibit are derived exclusively from attendance and capacity data filed by the Applicant in the case record. The weekly operating schedule (AIC Prayer Schedule Exhibit, Packet Pg. 1360-1362) used as the source for evening programs and Quran Evening Program sessions reflects the AIC's current operating schedule at their existing Menaul Street facility; it was submitted into the record by the Appellant (Pat Hauser / Maria-Diers Neighborhood Association). The AIC did not file a separate operational schedule for the proposed site and did not dispute this schedule at the July 1, 2026 hearing.

Formula: Vehicle Trips (daily) = (Person Count ÷ Vehicle Occupancy) × 2. The ×2 factor accounts for both the inbound trip (arrival) and the outbound trip (departure) for each attendee. This is the standard methodology used by the Institute of Transportation Engineers (ITE).

Vehicle Occupancy Rates

Use Type	Occupancy Rate	Source
Worship / Prayer (congregation)	2.5 persons/vehicle	ITE Trip Generation Manual 11th Ed., LUC 560 (Church)
Staff / Admin	1.0 person/vehicle	Standard single-occupant commute assumption
Quran Evening Program / Youth Programs	1.15 persons/vehicle	ITE LUC 520 (parental drop- off model)
Recreation (gym/basketball/pool)	1.5 persons/vehicle	ITE LUC 492

Source Data from Record

Data Point	Value Used	Record Source
Daily prayers per day	6	AIC Prayer Schedule Exhibit, Packet Pg. 1360-1362 (Fajr 4:07am, Sunrise 5:46am, Dhuhr 1:06pm, Asr 4:53pm, Maghrib 8:18pm, Isha 10:03pm)
Non-Friday prayer attendance (avg)	20 persons	Applicant Written Statement, Packet Pg. 1797-1807: "visitor will be less than 25 persons" on non-Friday days
Friday Jumu'ah attendance	350 persons	AIC Letter to Residents (see hearing testimony record and applicant materials, Packet Pg. 1085-1111): "350 to 400 attendees, typically 150 to 200 vehicles" — lower bound used
Friday Jumu'ah (written statement)	250 persons	Applicant Written Statement, Packet Pg. 1797-1807: "approximately 250 worshippers" — alternate lower figure also in record
Peak Eid event (2x/year)	615 persons	Applicant Written Statement, Packet Pg. 1797-1807: "615 worshippers" — NOT used in weekly charts (biannual event)
Staff (revised plan)	10 persons	Conservative estimate post-school removal — admin and facility management only
Mon/Thu evening programs	~30 persons	AIC Prayer Schedule, Packet Pg. 1360-1362: Hadith Roots (Mon), Shabab Circle (Thu) after 10:15pm Isha
Tue evening program	~25 persons	AIC Prayer Schedule, Packet Pg. 1360-1362: Suhbah Visionaries (Women 18-25) 6:30–7:30pm Tuesday
Fri Quran Evening Program	~50 youth	AIC Prayer Schedule, Packet Pg. 1360-1362: Quran Evening Program for Youth and Children 5:30–8:00pm Friday
Sat/Sun Quran Evening Program	~50 youth	AIC Prayer Schedule, Packet Pg. 1360-1362: Quran Evening Program 11:00am–2:00pm Saturday and Sunday

Sun Reverts Circle	~20 persons	AIC Prayer Schedule, Packet Pg. 1360-1362: The Reverts Circle 4:30pm Sunday
Sat/Sun late evening program	~30 / ~20	AIC Prayer Schedule, Packet Pg. 1360-1362: Suhbah Visionaries (Men 22+) after Isha Sunday
Operating hours (most days)	4:00am–10:30pm	AIC Prayer Schedule, Packet Pg. 1360-1362: "4 a.m. until 10:30 pm (most days)"
Operating hours (Mon, Thu, Sat)	4:00am–midnight	AIC Prayer Schedule, Packet Pg. 1360-1362: "4 a.m. until 11–12 midnight (Mon, Thu, Sat)"

Limitations and Caveats

These are MINIMUM estimates: All figures use the applicant's own stated lower-bound attendance numbers. The record also contains figures of 350–400 Friday worshippers (AIC letter), 615 Eid event worshippers, and a building cap of 60,000 SF. None of the higher figures are used in these calculations.

Population transfer not included: The applicant testified that existing mosques in the area will close and their congregations will transfer to this location. No quantified estimate of transferred congregation size was provided in the record. Transfer trips are therefore not included but represent a material upward adjustment factor.

Gym / basketball / pool trips not included: The applicant's written statement confirms the gymnasium and basketball court serve as "community recreation space for the mosque congregation during evenings and weekends." The indoor Pool Room (2,125 SF, first floor, Sheet A-200, Packet Pg. 1112-1125 range) is on the drawings but not described in the written statement (Packet Pg. 1797-1807). No attendance figure for these recreational uses is provided in the record. Recreation trips shown in the tables above are conservative estimates only.

No ITE floor-area methodology applied to building SF: The standard ITE approach for a Church (LUC 560) uses building square footage as the independent variable. The applicant's written statement does not provide the final confirmed SF — the record contains figures of 45,000 SF (county application), 50,000 SF (AIC letter to residents), and a Board-imposed cap of 60,000 SF. Because the SF is contested, person-count methodology from the applicant's own statements is used instead throughout this exhibit.

Friday Jumu'ah figure: 350 vs. 250: The written statement (Packet Pg. 1797-1807) states 250 worshippers for Friday. The AIC letter to residents (see hearing testimony record and applicant materials) states 350–400. Charts use 350 (lower bound of the AIC letter range) as the more conservative figure given that the letter was distributed to actual neighbors and represents a more candid self-assessment of demand.

Eid events (biannual) not charted: 615 worshippers are expected at Eid events (2×/year per written statement). These events would generate approximately 492 vehicle trips from worship alone — more than 5× the worship-trip volume of a normal weekday — and are excluded from the weekly charts because they are not weekly occurrences. They must nonetheless be analyzed in any TIA.

Withers/Applicant exchange reflects worship trips only: During deliberations, Commissioner Withers asked the Applicant directly: "starting off with 60 cars moving up to 300 cars. But likely is going to be under the 200 car ratio. Is that pretty correct?" The Applicant confirmed: "Correct." That exchange — the only vehicle count admitted by the Applicant on the record — was framed entirely around worship attendance, drawn from the written statement's congregation figures (Packet Pg. 1797-1807). At no point in that exchange, or anywhere in the Applicant's testimony, were vehicle trips attributed to the gymnasium and basketball court (7,925 SF — admitted as community recreation space), the indoor pool room (2,125 SF, first

floor, Sheet A-200, Packet Pg. 1112-1125 range — never described in the written statement, Packet Pg. 1797-1807), the coffee shop and cafeteria, the evening programs (six days per week, AIC Prayer Schedule, Packet Pg. 1360-1362), or population transfer from closing mosques. The "under 200 cars" figure the Applicant confirmed to Withers accounts for worship use alone on a 43,000 SF first floor containing a 12,326 SF indoor recreation complex, a commercial kitchen, a cafeteria, and a coffee shop. The Board voted on that partial accounting as if it described the whole project. The charts in this exhibit show why it does not.

Special event gatherings not included: The applicant's written statement describes the facility as a community center that will host "social events, outreach activities, and cultural events" (Packet Pg. 1797-1807). The AIC letter to residents similarly references ongoing "community activities" at this location. Weddings (nikah ceremonies), funeral prayers (janazah), Ramadan iftar and tarawih gatherings, Mawlid observances, community banquets, and other special religious and cultural events are not scheduled uses listed in the record and are therefore not counted in these charts. Each such event can generate attendance comparable to or exceeding a Friday Jumu'ah gathering. These events are unquantified, unscheduled, and entirely outside the scope of any parking or traffic analysis submitted by the applicant. A complete TIA must account for the full range of special uses.

Prepared from documents in the official case record for Case ZBA2026-0001 / ZA2026-0024, using BOA agenda packet page citations ("Packet Pg. NNN") based on the 1,951-page unified agenda packet (Exhibits on Public Portal).

hdhauser@comcast.net

Tue, Jul 7 at 10:38 PM ☆

From: hdhauser@comcast.net**To:** 'Maggie Gould'**Cc:** 'Nicholas Hamm', kpeggau@bernco.gov,

Elvira Lopez, 'Annette Kitts', Maggie Rose

and 5 more...

Subject: Public comment – ZA2026-0107 and request for corridor-wide moratorium on deferred TIAs

Dear Zoning Administrator Gould and Planning & Development Services staff,

My name is Pat Hauser, and I am a resident of the Far North Valley in unincorporated Bernalillo County, living near the Alameda / 2nd Street / Homeland Road corridor. I am writing to ask that this comment be placed in the official record for **ZA2026-0107 (221 Homeland Rd NW)** and that you consider not only this individual case, but the broader pattern of how traffic safety is being handled on this system.

In recent hearings, including the **9600 2nd Street NW** case, the County and its counsel have described a practice where **Traffic Impact Analyses are routinely deferred to the building-permit phase**, with land-use approvals granted first and detailed traffic review left for later. A NOD was received today. An appeal on this matter to the BBC will be forthcoming.

Commissioner **Mr. Withers**, speaking to the Board, reinforced that pattern when he emphasized that Public Works had reviewed a “traffic scoping report,” used the Institute of Transportation Engineers trip generation

manual, and “determined on the record before you that no further traffic study was required and they approved the project with no adverse comments.” His statement was clearly intended to reassure decision-makers that the traffic concerns were already handled, and it contributed to a vote that kept the TIA and any hard look at cumulative impacts off the front end of the land-use decision.

With respect, that approach and that testimony leave out several critical realities for all stakeholders—neighbors, applicants, County staff, and even emergency services. When a conditional use or special use permit is granted for a large assembly or other high-volume use **without a full, project-specific Traffic Impact Analysis in the land-use record**, several things happen:

- The hearing body is asked to answer the **Appendix A, Section 24** safety criteria—about undue congestion, hazards, and impacts on neighborhood character—without current, corridor-wide data and modeling.
- Neighbors lose any real opportunity, at the land-use stage, to test the assumptions, question the trip numbers, or demonstrate how cumulative approvals are degrading level of service, queuing, and emergency access.
- Applicants are left in a late, uncertain position where major off-site infrastructure requirements can surface only after they already hold land-use rights and have invested in design.
- Public Works and Planning are forced to work case-by-case, at permit review, rather than from an openly vetted corridor plan that accounts for

river-crossing limits, right-of-way constraints, and the combined impact of all high-volume uses approved in the area.

When Mr. Withers tells the Board that Public Works “determined on the record...that no further traffic study was required,” he is describing a **minimal scoping review**, not a full Traffic Impact Analysis that looks at the corridor as a system and the cumulative effect of stacking large assemblies and other traffic-intensive uses on already constrained roads. That distinction matters. A scoping memo that says “no TIA at this time” is not the same thing as a transparent, public TIA with documented counts, intersection analysis, queuing, and mitigation measures. It does not give neighbors or decision-makers the evidence they need to answer the ordinance criteria honestly.

On the **Alameda / 2nd Street / Homeland Road** network, the consequences of this pattern are not hypothetical. On the record it has been proven that this corridor is a shared bottleneck, with limited river crossings, tight rights-of-way, industrial and commercial traffic, and a growing list of large assemblies and institutional uses already in play. Every time a high-volume conditional use is approved with traffic pushed off to “later,” the practical burden shifts onto:

- Residents, who live with longer queues, more conflict points, and degraded rural character.
- Drivers and pedestrians, who face higher crash and near-miss risks at unsignalized access points and constrained intersections.

- Emergency responders, who must navigate cumulative congestion and any physical changes that might eventually be made in piecemeal fashion.
- The County itself, which risks being out of step with its own technical standards by allowing major generators without front-loaded analysis and documented mitigation.bernco+1

From a legal standpoint, deferring TIAs in a **systemic pattern** also creates tension with the basic purpose of your technical standards and processes. The County's own permits and processes guidance says that Public Works reviews building permits for "traffic impacts" and that certain developments require traffic assessments and infrastructure improvements. If, in practice, large traffic-generating conditional uses are consistently approved before those impacts are properly studied, the land-use decisions risk being made on an incomplete record. That is unfair to neighbors and it is unfair to applicants who may later face unexpected, costly conditions.

I am also aware that in the 9600 2nd Street matter and others, **federal religious-land-use law (RLUIPA)** has been cited as a reason to be cautious about requiring traffic studies at the conditional-use stage. Respectfully, the way that concern is being used seems to go beyond what the law actually requires. RLUIPA exists to ensure that religious assemblies are **not treated worse than comparable secular assemblies**; it does not forbid the County from raising its safety standards or from requiring **all** big, traffic-intensive uses to show their impacts up front, as long as those rules are applied

even-handedly. Using RLUIPA as a reason to continue deferring traffic analyses—rather than to equalize them—risks turning a civil-rights protection into a permanent excuse to avoid transparent safety review.

For all of these reasons, I am asking for two specific actions:

For ZA2026-0107 (221 Homeland Rd NW):

Do not approve this conditional use on a thin or deferred traffic record. Require a full, project-specific Traffic Impact Analysis, with realistic trip generation for worship and events, cumulative analysis for Alameda, 2nd Street, Homeland and connecting roads, and a clear explanation of what mitigation is physically and jurisdictionally possible before answering the Section 24 criteria.

What worries us as neighbors is not just that the TIA comes later—it's that big projects keep getting approved on this already stressed corridor *without* ever putting a full traffic study in front of the people making the land-use decision. Your own traffic rules say the point of these studies is to figure out the impacts and the fixes, so you don't approve something that will overload the roads or make things unsafe. When that analysis is pushed off to building permits, we lose our chance to see the numbers and speak up, and you're essentially saying "trust us, we'll sort it out later" in a corridor that already shows signs of failure. On Alameda / 2nd / Homeland/ Regional Area, that isn't just a paperwork issue—it's a real gap in protection for the families who live and drive here every day.

• **At the corridor level:**

Ask the Board of County Commissioners to adopt a **neutral, temporary moratorium** on new high-volume conditional uses (religious and secular assemblies, institutional and commercial generators) along

the **Alameda / 2nd Street NW corridor and similarly constrained Rural North Valley segments**, until updated corridor-wide traffic studies are completed and publicly vetted. Those studies should include current counts, level-of-service and queuing analysis, river-crossing limits, right-of-way constraints, and realistic mitigation options. Only then can land-use bodies fairly judge whether additional large assemblies can be added “without undue traffic congestion or hazards and without serious conflict with the character of the area.

A neutral, across-the-board pause is not discrimination; it is an attempt to **protect all stakeholders** by making sure safety decisions are based on complete facts rather than on reassuring but incomplete statements like Mr. Withers’ description of a scoping review as if it were a full traffic study. The law expects you to apply your standards fairly to everyone. That is exactly what a moratorium tied to corridor-wide evidence would do.

The ZA and BOA may *choose* to defer a TIA, but if they do it as a routine practice on a failing corridor, and still claim the safety criteria are met without real analysis, they are stepping into legally vulnerable territory—deciding with incomplete evidence and weakening the protections their own rules promise residents.

By repeatedly deferring Traffic Impact Analyses to the building-permit phase on the Alameda / 2nd Street corridor and Regional Area, the Zoning Administrator and Board of Adjustment have effectively hollowed out the protective intent of Bernalillo County’s traffic-review standards and Appendix A, Section 24 criteria. The County’s Technical Standards state that the purpose of traffic review is “to identify the potential impacts of new development and mitigation,” a function that is logically and legally tied to the *land-use* decision, not merely to later building permits. When high-volume conditional uses are

approved without project-specific TIAs or corridor-level analysis in the hearing record, the required findings—no undue traffic congestion or hazards, no serious conflict with neighborhood character—are being made on incomplete evidence. That pattern is not a harmless choice of timing; it is an administrative practice that fails to reasonably protect residents on a constrained corridor, and is therefore arbitrary, inconsistent with the County's own standards, and subject to reversal by the Board of County Commissioners.

Thank you for your consideration and for including this comment in the record.

Please acknowledge receipt of this e mail.

Regards:

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